

Committee: United Nations Educational, Scientific and Cultural Organization

Topic: The question of Establishing International Strategies for the Protection and Restoration of Cultural Heritage in Conflict Zones

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Introduction

Throughout history, wars have left its mark on myriads pieces of cultural heritage. Buildings and monuments have become collateral damage and artwork and artefacts have been looted. This critical problem continues to be a feature of many modern conflicts. Sabine von Schorlemer, chair of international law at the Technical University of Dresden, has argued that deliberate and systematic acts against cultural heritage have spread to a considerable extent since the destruction of the Bamiyan Buddha statues by the Taliban in Afghanistan in March 2001. Clearly, the case highlighted the vulnerabilities of cultural heritage in conflict zones to global society, and laid groundwork for increased funding, technical missions, and the development of long-term strategies for safeguarding cultural heritage in conflict zones.

Cultural heritage is not only a symbol of national identity but a reflection of the living memory of humanity. It is a timeless treasure that connects the roots, values, identities, costumes, and folks. Whether it takes the form of historic cities like Aleppo, sacred religious places such as Mosul's Al-Nouri Mosque, or such intangible heritage as oral traditions and rituals, cultural heritage anchors communities to their long history, reinforcing the bond and continuity.

Generally, cultural heritage promotes mutual understanding, education, and economic development in tourism. Nonetheless, in conflict zones, it becomes a vulnerable target, often deliberately bombarded or destroyed in the effort to erase the identity and morale of populations. The destruction of heritage is far more than a physical or economic issue; it is an elimination of collective

history. When museums are looted, manuscripts are burned, and historical buildings are razed, communities are robbed of both their past and their cultural foundation for the future.

While there are ongoing efforts to protect cultural heritage in conflict zones, including the 1954 Hague Convention and its protocols under UNESCO's auspices, international support is still required and significantly necessary to address the modern challenge. Armed non-state actors, ideological extremism, and the absence of political will in conflict areas render many international conventions ineffective on the ground. Without enhanced international cooperation, stronger oversight, and specific implementation frameworks, the global community will remain unlikely to safeguard cultural heritage under threat.

Definition of Key Terms

Intangible cultural heritage

ICH(Intangible cultural heritage) refers to the practices, representations, expressions, knowledge, skills, as well as the instruments, objects, artefacts and cultural spaces associated therewith. Communities, groups and, in some cases, individuals recognize them as part of their cultural heritage. Descended from generation to generation, it is consistently recreated by communities and groups in response to their environment, their interaction with nature and their history. It provides them with a sense of identity and continuity, thus promoting respect for cultural diversity and human creativity.

Tangible cultural heritage

Tangible cultural heritage refers to physical and material objects that represent a culture's history, traditions, and values. It can be touched, seen, and physically interacted with. Tangible cultural heritage encompasses monuments, buildings, museum collections, artworks, and archaeological sites, whether movable, immovable, or underwater.

Conflict zones

Conflict zone refers to war or political instability that disrupts essential services such as housing, transportation, communication, sanitation, water, and health care. These circumstances often necessitated international humanitarian responses. While there is no internationally agreed definition of conflict zone, such terms as armed-conflict zone, conflict-affected zone, or high-risk areas are interchangeably utilized in international discussions. According to OECD, armed-conflict zones may take such forms as a conflict of international or non-international character. This typically involves two or more states, or may comprise wars of liberation, insurgencies, and civil wars. Conflict-affected zones and high-risk areas are broader categories: not only regions facing armed conflict but also political instability, widespread violence, institutional weakness, insecurity, and the collapse of civil infrastructure.

ANSAs (Armed Non-State Actors)

Armed non-state actors refers to organized armed entities that are not integrated into the formal state military structures, and that have the capacity to use force to achieve political,

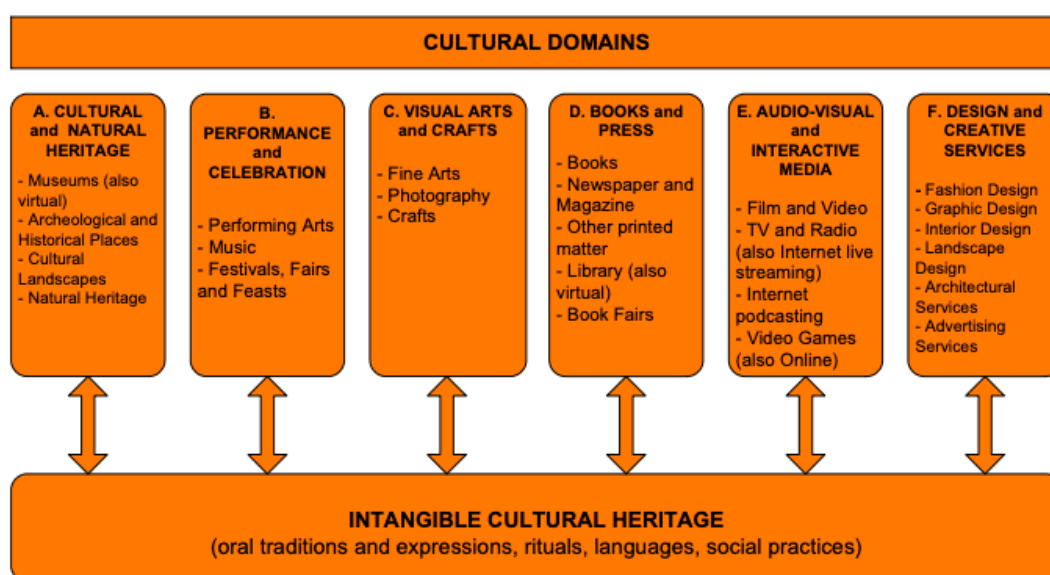
ideological, or territorial aims. It is also sometimes called ‘armed opposition groups’, ‘rebels’, ‘freedom fighters’ or ‘terrorist organizations’.

Ideological Extremism

Ideological extremism is defined as a type of extremism rooted in an inflexible and all-encompassing ideology including political, religious, or social ideologies. It shapes identity around a polarized worldview (‘us vs. them’). While ideological extremism does not always lead to violence, it often helps to justify violent actions carried out by radical individuals or militant groups.

Cultural domains

According to UNESCO Framework for Cultural Statistics(2009), cultural domains refer to a general set of culturally productive industries, activities and practices that can be categorized under A: Cultural and Natural Heritage; B: Performance and Celebration; C: Visual Arts and Crafts; D: Books and Press; E: Audiovisual and Interactive Media and F: Design and Creative Services.



Framework for Cultural Statistics Domains(The 2009 UNESCO Framework for Cultural Statistics, 2009)

Background Information

The destruction of the Bamiyan Buddha statues

On February 26, 2001, Mullah Muhammad Omar, the head of the Taliban, issued a decree, with the approval of a council of 'ulama', ordering that every statue and religious site outside the domain of Islam be destroyed throughout the country. Classifying them as sanctuaries for unbelievers, the soldiers used rockets, tank shells, and dynamite to destroy two giant Buddha statues carved into the cliffs of Bamiyan. One statue was 38 meters tall, and the other was 55 meters. The destruction was finished by March 14.

International efforts, including appeals from UNESCO, Buddhist-majority countries such as Thailand and Sri Lanka, and moderate Muslim leaders, to halt the destruction proved ineffective. Several countries and institutions, such as the MET in New York, even proposed eliminating or purchasing the statues to conserve them. Nevertheless, the Taliban rejected these suggestions, claiming that there were no Buddhists in Afghanistan and that idol worship had no place in Islamic society.

While the Taliban claimed religious motivations, a contextual analysis suggests political considerations were also at play. Before this, Taliban leaders had said they would protect the Bamiyan statues. However, the alteration in stance coincided with increasing international isolation and sanctions imposed by the United Nations Security Council. Some observers have interpreted the destruction as an act of defiance, a symbolic reprisal aimed at the international community. The Taliban also criticized the West for expressing outrage over the statues while allegedly ignoring the humanitarian suffering of Afghan citizens. In this respect, the destruction of the Buddhas became not just destroying religious symbols, but sending a political message against perceived Western hypocrisy. Even though the destruction of the Buddhas did not directly cause military action against the Taliban, it damaged their reputation around the world. Many people saw it as a serious loss of cultural heritage, and it became one more reason why the Taliban government lost support internationally.

In response to the destruction, UNESCO's Director General Koichiro Matsuura criticized the act as a 'crime against culture' under the 1954 Hague Convention and called for international action. Additionally, a delegation from Egypt's Al-Azhar scholars was sent to negotiate with the Taliban, though they arrived too late to prevent the damage. Following the fall of the Taliban's regime, UNESCO assumed a leading role in coordinating international efforts to protect Afghanistan's cultural heritage. This encompassed emergency missions to Bamiyan to safeguard and assess the site, the creation of the BEWG (Bamiyan Expert Working Group), and the coordination of funding and expertise from nations such as Japan, Germany, and Italy.

In 2003, the 'Cultural Landscape and Archaeological Remains of the Bamiyan Valley' was inscribed on the UNESCO World Heritage List and simultaneously listed as endangered. From 2002 onward, UNESCO and ICOSMOS (International Council on Monuments and Sites) brought myriads of missions to stabilize the cliff niches, recover fragments, and debate potential reconstruction measures. These discussions led to a global dispute on whether reassembling destroyed heritage could preserve authenticity. The event also influenced global policy. It stressed gaps in international mechanisms for protecting cultural heritage during conflict, contributing to stronger advocacy for legal enforcement of cultural protection treaties. The 2003 UNESCO Declaration concerning the International Destruction of Cultural Heritage was partly shaped by this event.

Destruction of cultural heritage in World War II

During World War II, cultural heritage became not just collateral damage but often a deliberate target of warfare, used as a tool for cultural domination and psychological warfare. One of the most prominent examples was the destruction of Warsaw Castle in Poland. After initial bombing in 1939, the structure was left partially intact, symbolizing Polish national identity and resistance. However, in 1944, during the suppression of the Warsaw Uprising, Nazi forces systematically placed explosives and destroyed the castle as part of a broader effort to erase Polish historical memory. The Nazi campaign included the destruction of libraries, churches, and monuments across Poland.

Similar patterns occurred elsewhere in Europe. In Italy, retreating German forces demolished all historic bridges in Florence except the Ponte Vecchio. In Germany, the Allied bombing of Dresden in 1945 destroyed over 75,000 buildings, including key cultural landmarks such as the Baroque Frauenkirche and the Zwinger Palace, despite Dresden's limited strategic military value. In the United Kingdom, the Luftwaffe's bombing of Coventry Cathedral turned the iconic religious structure into ruins, indicating the vulnerability of sacred sites during aerial warfare.

The scale and targeting of these attacks revealed the fragility of cultural heritage in modern conflict and catalyzed the emergence of preservation efforts even during wartime. In the United States, a coalition of museum directors, scholars, and archivists, known as the Harvard Group, advocated for the U.S. military to protect Europe's cultural assets. This led to the formation of the American Commission for the Protection and Salvage of Artistic and Historic Monuments in War Areas, or the Roberts Commission, in 1943, which later established the MFAA (Monuments, Fine Arts, and Archives program). The MFAA deployed over 350 officers across 13 countries. These individuals, later called the Monuments Men, identified, stabilized, and facilitated the return of over 2.8 million artworks and cultural objects looted or displaced by the Nazi regime. Their operations encompassed securing hidden repositories such as salt mines in Austria and Germany, where hundreds of thousands of artifacts had been stored. Allied troops were provided with maps, lists, and cultural briefings prepared by the MFAA to avoid damaging heritage sites during military operations.

Simultaneously, local initiatives demonstrated the crucial role of civilian actors. Between 1942 and 1943, the twelve Jewish scholars, known as Paper Brigade, working under Nazi smuggle thousands of books and tens of thousands of documents from the YIVO collection out of the hands of the Nazis. Returning to Vilna after the war, members of the Paper Brigade recovered many of the items such as YIVO papers. In Poland, librarians from the Seminary of Pelplin secretly evacuated parts of their collection, some dating to the 13th century, across Europe and eventually to Canada. Their collaboration with politicians, scholars, and ordinary citizens preserved tens of thousands of archival items during the war.

In response to the widespread destruction of heritage during the war, the international community acknowledged the need for a legal framework to prevent such losses in future conflicts. These concerns led to the drafting and adoption of the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict. As the first multilateral treaty focused solely on

safeguarding cultural property during war, it established obligations for state parties to protect cultural sites, mark them with a distinctive emblem, the Blue Shield, and refrain from using them for military purposes. It also laid the groundwork for future instruments, such as the Second Protocol (1999), which introduced individual criminal responsibility for serious violations.

Russia-Ukraine war

The ongoing Russia–Ukraine war, which escalated into a full-scale invasion in February 2022, has posed severe threats to cultural heritage across Ukraine. According to UNESCO, 501 cultural sites in Ukraine have been verified as damaged, including 34 museums, 151 religious buildings, 262 historic or artistic buildings, 33 monuments, 2 archaeological sites, 1 archive, and 18 libraries. These damages not only represent the destruction of physical structures but also the erosion of national identity and historical continuity.

In response to these threats, UNESCO has mobilized over \$74 million USD to support emergency and medium-term cultural protection measures since 2022, containing documentation, protection of moveable heritage, and support for displaced cultural professionals. Ukraine has also received technical and financial assistance from multiple countries and institutions to safeguard movable and immovable heritage. Furthermore, in collaboration with ICCROM (International Centre for the Study of the Preservation and Restoration of Cultural Property) and ICOMOS (International Council on Monuments and Sites), UNESCO conducted multiple technical missions and capacity-building programs. In 2023, joint workshops were held in Kyiv to train 25 cultural heritage professionals from high-risk regions on risk assessment and first aid for cultural property. In June 2025, a UNESCO–ICOMOS mission to the Historic Centre of Odessa helped initiate site protection planning and management strategies, with funding from the Japanese government and the World Heritage Fund.

On the legal front, the war has raised concerns over potential violations of the 1954 Hague Convention for the Protection of Cultural Property, to which both Russia and Ukraine are State Parties. Intentional attacks on cultural heritage may constitute war crimes under Article 8 of the Rome Statute of the International Criminal Court. Ukraine has formally accused Russian forces of

systematic cultural destruction, art theft, and the illegal removal of cultural assets from occupied areas. To address illicit trafficking, UNESCO has also organized workshops for customs and law enforcement officers from several countries, training them to identify and prevent the smuggling of Ukrainian cultural property.

Beyond the physical destruction and legal implications, the war's impact on cultural heritage has profoundly affected everyday life across Ukraine. According to UNESCO, damage to the culture and tourism sectors is estimated at \$3.5 billion, with a projected \$9 billion needed over the decade to restore these industries. Tourism revenues alone have plunged by over \$19 billion, marking a devastating blow to local economies and cultural exchange. The education sector also suffered severely. In 2023, UNICEF reported that nearly one in five schools in Ukraine had been damaged or destroyed, leaving millions of students encountering hardships in learning. This loss of access to cultural sites and educational spaces has had long-term consequences on social cohesion and the psychological well-being of displaced and affected communities. To address these impacts, in 2025, €2.2 million EU-supported initiative was launched to conserve Ukraine's Jewish documentary heritage, focusing on digitizing archival records and training more than 50 professionals to ensure long-term preservation and accessibility.

This case underscores the urgent need for a unified international strategy to not only prevent deliberate destruction but also to restore and rehabilitate cultural heritage in post-conflict settings. It highlights gaps in enforcement, coordination, and accountability within the current international framework and raises important questions about state responsibility, emergency protection mechanisms, and the role of international cooperation during and after armed conflicts.

ISIS

Between 2014 and 2017, the ISIS (Islamic State) carried out attacks on cultural heritage in Iraq and Syria. In Mosul, Iraq's second-largest city and one of the oldest in the world, ISIS destroyed numerous historic and religious sites, including the Tomb of Jonah, the ancient city walls, and the

Great Mosque of al-Nuri. In Syria, they targeted the UNESCO World Heritage site of Palmyra, demolishing iconic structures such as the Temple of Bel, the Arch of Triumph, and ancient tombs.

According to Omar Mohammed, ISIS's destruction of heritage in Mosul was part of a deliberate strategy to obliterate the past, instill fear, and impose their ideological narrative by removing the city's historical and cultural symbols. By destroying physical representations of history and identity, ISIS sought to rewrite cultural narratives in alignment with their ideology, while also undermining social cohesion. The group simultaneously looted and trafficked antiquities through transnational black markets, using the profits to fund militant operations.

The consequences have been catastrophic. Locally, residents of Mosul lost not only significant landmarks but also their sense of cultural identity and continuity, deepening the trauma of displacement and violence. Economically, the destruction severely harmed local economies dependent on cultural tourism. Globally, it resulted in the irreparable loss of universal heritage and a serious blow to the world's shared understanding of history.

In response, projects like 'Revive the Spirit of Mosul' by UNESCO and local partners, aim to rebuild symbolic sites such as the Great Mosque of al-Nuri. These efforts are not only rebuilding architectural structures, but also part of broader strategies to counter extremism, promote peace and reconciliation, and empower local communities to reclaim their identity and history. The reconstruction has created jobs, revived civic pride, and sent a global message that cultural erasure will not succeed.

Cultural trafficking during conflicts

Illicit trafficking of cultural property from cultural heritages emerges as one of the most significant problems in conflict zones. Illicit trafficking of cultural property refers to the illegal excavation, export, sale, or acquisition of cultural items, such as statues, manuscripts, and artifacts. According to UNESCO and INTERPOL, approximately 166,000 trafficked objects from MENA (Middle East and North Africa) are estimated to have been seized since 2014. In conflicts, such acts

are exponentially exacerbated not only by political instability, and weakened legal enforcement, but also by armed groups, particularly terrorist organizations like ISIS. They have actively engaged in the systematic looting and sale of antiquities to finance operations.

For instance, ISIS destroyed and looted heritage sites such as Mosul Museum, Nimrud, and Palmyra, later distributing antiquities into the black market via transit hubs such as Türkiye, Lebanon, and UAE. Owing to the incident, the term ‘blood antiquities’ has come out, stressing how several cultural materials are sold to fund armed violence and extremism. Specifically, an estimated 3 billion USD to 15 billion USD is generated annually from the illicit trafficking of cultural property, depending on the source. Looting artifacts from conflict zones often penetrates intermediary nations like Türkiye, Lebanon, and Jordan and arrive in recipient countries such as France, United Kingdom, U.S.A, Spain, and Belgium. These countries are often home to thriving legal art markets, where fake provenance documents or forged ownership histories are used to launder antiquities.

In order to counter the problem, international operations have been actively mobilized in recent years. For example, the ninth edition of Operation Pandora, conducted throughout 2024, targeted the smuggling and illegal sale of cultural goods across Europe and neighboring regions. Coordinated by Spain’s Guardia Civil with operational support from Europol, INTERPOL, and WCO (World Customs Organization), the operation involved 23 countries and resulted in 80 arrests and the seizure of over 37,700 items, including archaeological artifacts, religious icons, and artworks. Notably, the operation also recovered tools commonly used for illegal excavations and uncovered trafficking routes linked to nations affected by conflict like Ukraine, where 87 cultural goods were intercepted at the border. In addition to field seizures, cyber patrols targeting online black markets led to over 4,000 objects confiscated, highlighting the growing role of digital platforms in antiquities smuggling.

Despite such effort, legal and security challenges remain before addressing the hazard. To begin with, once an object is unregistered or looted without documentation, tracking its provenance becomes nearly impossible. According to UNESCO, cultural property looted during conflicts may not surface on the legal market for years or even decades, making detection extremely complicated. Additionally, some terror suspects in Europe have had links to antiquities trafficking, underscoring the security implications of cultural crime. Although the 1970 Convention and UNSC Resolution 2347 are in place, enforcement is still fragmented and inconsistent.

Causes of destruction in cultural heritage

The destruction of cultural heritage does not only trigger gaps in the history and communities' identities but also brings civilian casualties and damages in civilian infrastructure. Thus, it is significant to examine and determine the factors that cause the demolition of cultural heritage.

One of the causes of cultural heritage destruction is its intentional use as a weapon in warfare and ideological conflict. These acts are often deliberate and serve symbolic and strategic purposes. Armed groups such as ISIS have specifically targeted both tangible heritage and intangible heritage to erase the unique cultural identity of communities and destabilize societies. This destruction is not only an attack on buildings but on the very sense of belonging and memory of a people, leaving them psychologically disoriented and emotionally displaced. Former director general of UNESCO, Irina Bokova, stressed that such attacks are aimed at depriving people of their identity, history, and dignity. Likewise, cultural heritage is frequently chosen for destruction to maximize propaganda impact, provoke international outrage, or signal dominance. For instance, ISIS used Palmyra not just as a target, but also as a stage, executing prisoners in its ancient theater to broadcast power and terror. Motivations also include iconoclasm, the removal of political or religious legitimacy, and looting for financial gain.

In spite of the attempts to address the destruction of cultural heritage in conflict zones, still limitations remain. To begin with, one of them is the sparsity in the comprehensive heritage site list. Many cultural protection efforts rely on heritage site lists that are manually created by governments or institutions. These lists often prioritize nationally recognized or globally significant sites, overlooking smaller but locally meaningful places such as village cemeteries, regional museums, or community memorials. This selective documentation introduces bias into protection and monitoring systems, leaving numerous sites vulnerable and unaccounted for.

In addition, due to safety and accessibility limitations, most heritage damage assessments are carried out only after hostilities have ended. Consequently, destruction that occurs mid-conflict, such as through bombing, occupation, or looting, are often undocumented. This delay hinders not only emergency response but also post-conflict recovery, as accurate data is lacking when decisions must be made about resource allocation and restoration priorities.

Lastly, while satellite-based tools like NASA's FIRMS (Fire Information for Resource Management System) enable heat-based damage detection, they are limited to fire-related destruction and require technical expertise, costly imagery, and high computational capacity. Other types of damage such as looting, occupation-related degradation, or structural weakening remain largely undetected.

Tools for monitoring cultural heritage

Terrestrial Laser Scanning (TLS), a non-invasive monitoring tool, involves emitting laser beams toward a structure and measuring the time it takes for the light to return. The result is a dense set of data points, known as a point cloud, that captures the exact shape and surface condition of the object. By repeating this process over time and comparing scans from different periods, experts can detect even small structural changes such as surface erosion, cracks, or volume loss.

To process and analyze this data, researchers use open-source software CloudCompare, which applies methods like ICP (Iterative Closest Point) and C2C (Cloud-to-Cloud) distance calculations. These tools align two point clouds from different time periods and highlight the differences between them. For example, in the study of the San Pietro Barisano bell tower in Matera, Italy, this method was used to quantify the structural degradation that occurred between 2017 and 2020.

In addition to C2C analysis, the study also applied volume comparison techniques, which calculate the amount of material lost or displaced over time. This helps conservation teams assess the urgency of intervention and plan appropriate restoration strategies. These techniques are especially useful for monitoring hard-to-reach or fragile sites where traditional inspection may be too risky or impractical.

However, several challenges remain. First, the equipment and data processing require technical expertise, making it difficult to adopt in areas with limited resources or training. Second, the tools detect physical change but not the cause, meaning that further investigation is often required to

understand whether damage is due to environmental factors, structural fatigue, or human activity. Lastly, standardized procedures for data acquisition, analysis, and sharing are still lacking, which limits the ability to compare results across different regions and institutions.

Another tool for monitoring cultural heritage is UAVs (Unmanned Aerial Vehicles). UAVs, or drones, are increasingly used to protect cultural heritage in conflict-affected or dangerous areas. They can fly over damaged or hard to reach sites and take high-resolution photos from different angles. These photos are then processed using photogrammetry software, such as Agisoft Metashape or Pix4D, which turn overlapping images into accurate 3D models. This method, known as SfM (Structure from Motion), helps experts understand the exact shape and surface of a building or site.

These 3D models are georeferenced; they are linked to real-world coordinates using GPS or EGNSS (European Global Navigation Satellite System) data. This allows experts to monitor changes over time and compare the current condition of a site to earlier versions. In some cases, the models are also added to BIM (Building Information Modeling) systems like Autodesk Revit, which help conservators plan emergency repairs or restorations. To speed up this process, deep learning models are also used to automatically detect visible damage in the images collected by drones. The AI marks where damage is found and uploads that information to a central system, helping conservation teams act quickly even if they cannot visit the site in person.

However, there are still challenges. AI systems need a lot of training data to work well, and that kind of data is often limited when it comes to heritage sites. Also, drones depend on good weather, legal flight permission, and strong internet connections for real-time updates, all of which may be unavailable in active conflict zones.

3D Digital Twins and Real-time monitoring platforms also play a significant role in managing cultural heritage. Digital twins are detailed virtual replicas of cultural heritage structures, created using technologies such as 3D scanning, photogrammetry, Geographic Information Systems (GIS), and Building Information Modeling (BIM). In the context of conflict zones, these tools enable people to have accurate documentation of vulnerable sites before, during, and after periods of instability.

Data collected through Terrestrial Laser Scanning (TLS) or UAV-based photogrammetry can be used to build interactive, web-based models that reflect both the appearance and structural behavior of the original site. These models allow experts to monitor ongoing deterioration, simulate potential damage scenarios, and plan effective restoration strategies. Conducting the simulation of various conservation approaches allows experts to assess the outcomes of different interventions virtually, selecting the most appropriate method before applying it on-site, especially critical in regions where physical access is limited due to security risks.

While digital twins enhance precision, remote coordination, and long-term preservation planning, they also present challenges. Their creation and maintenance require technical expertise, substantial data infrastructure, and ongoing updates to remain accurate and useful. In many conflict-affected regions, limited access to equipment or stable connectivity may restrict their deployment.

Lastly, the GIS-Based Digital Inventory Systems are also important for tracking cultural heritage. Systems like CultureBOOK serve as centralized databases for storing and organizing information on cultural heritage assets. These platforms combine GIS(Geographic Information System), photographs, historical records, and classification systems to allow for easy data entry, searching, and mapping. They help monitor large networks of sites across different heritage categories, such as archaeological remains, religious buildings, and urban monuments, and support communication among researchers, conservators, and government agencies. Nonetheless, a key challenge is ensuring interoperability between platforms and standardizing data formats, especially when multiple organizations are involved across national borders.

Possible solutions

Reinforcing legal international enforcement

The 1954 Hague Convention and its two Protocols remain the cornerstone of international heritage protection, with 136 States ratifying the Convention, 112 ratifying the First Protocol, and 90 ratifying the Second Protocol by mid-2025. Nevertheless, the enforcement remains weak: in the most recent UNESCO reporting cycle, from 2017 to 2020, the national periodic reports were submitted by only 44% of States parties. Prosecutions for cultural heritage destruction are exceptionally rare. Notably, the ICC (International Criminal Court) has adjudicated only two relevant cases: the 2016 conviction of Ahmad al-Faqi al-Mahdi, sentenced to nine years for attacks on mausoleums in Timbuktu, and the 2024 trial of Al Hassan Ag Abdoul Aziz, who was acquitted due to insufficient evidence. With just one conviction in nearly seven decades of the Convention's existence, the enforcement of cultural protection lacks binding sanctions when cultural heritage is deliberately destroyed. To address this, it is essential for the international community to formally designate intentional heritage destruction as a war crime within ICC jurisdiction, and adopt UN resolutions that elevate such offenses to the same gravity as attacks on civilians, enabling automatic sanctions, such as travel bans or asset freezes, via the Security Council. By establishing enforceable legal consequences, the international community can significantly enhance deterrence and compliance.

Addressing Non-state actors

While states remain central to international law, most recent destruction of cultural heritage has been carried out not only by nations but also NSAs (Non-State Armed groups). Groups such as the Taliban, ISIS, and al-Qaeda have deliberately targeted monuments to erase cultural identity and exert ideological dominance. The Taliban's demolition of the Bamiyan Buddhas in 2001 shocked the world and highlighted the inability of existing conventions to restrain actors who reject international norms. Similarly, between 2014 and 2017, ISIS destroyed Palmyra's Temple of Bel and looted countless artifacts from Iraq and Syria to finance terrorism. Because NSAs are not bound by treaties signed by states, new strategies are required. A possible solution would be the adoption of UN guidelines for NSAs on how to protect cultural heritage, developed with the help of neutral organizations such as the ICRC (International Committee of the Red Cross) or Geneva Call, which already engages with NSAs on humanitarian norms. To encourage these groups to follow the guidelines, the international community could offer incentives, such as access to humanitarian aid corridors, or eligibility for post-conflict reconstruction assistance. Moreover, expanding the ICC's jurisdiction, either through

Security Council resolutions or treaty amendments, to explicitly cover serious cultural heritage crimes committed by NSAs would close a major loophole in enforcement. These could significantly reduce the impunity that currently enables NSAs to target heritage sites as tools of war and terror.

Advancing monitoring mechanism

Whereas advanced tools such as TLS (Terrestrial Laser Scanning), UAVs (Unmanned Aerial Vehicles) with photogrammetry, 3D digital twins, and GIS-based digital inventories enable precise documentation and remote monitoring of cultural heritage in conflict zones, their practical use is often constrained by technical, infrastructural, and operational challenges. For instance, digital twin technology lacks a universal framework, designed for very specific uses, and faces concerns over data security and interoperability, which undermines scalability. Similarly, studies on UAV and TLS integration highlight the lack of standardized methodologies to evaluate data quality, such as point density, geometric accuracy, and noise, which makes it hard to compare results across different sites. To overcome these challenges, nations can develop international technical standards and protocols for heritage monitoring technologies. Such standards could cover data acquisition, processing workflows, security measures, and metadata formats to ensure interoperability and comparability. In addition, training programs can be launched in conflict-affected and resource-constrained regions, providing to local experts. It is also important to consider means to collect and save data for experts in places where the internet access is often unstable.

Ensuring sustainable funding and capacity building

Despite growing threats to cultural heritage in conflict zones, funding and local capacity remain severely insufficient. According to the UNESCO 2023 Annual Progress Report, out of 13 HEF (Heritage Emergency Fund)-supported activities in 2022 to 2023, only 7 were fully completed, while the rest were either partially completed or not delivered at all. Furthermore, only four out of 47 member states supported by the fund submitted survey responses on their emergency preparedness progress, revealing serious weaknesses in monitoring and local engagement.

To address these gaps, increasing financial contributions to the HEF could be the solution. For instance, MEDCs can pledge a fixed percentage of their cultural budgets annually to HEF. In addition, member states could consider the creation of a new global cultural heritage resilience fund, with a dual mandate: long-term capacity building in fragile regions, and rapid response in emergencies. This fund could be jointly managed by UNESCO or regional organizations, such as ASEAN (Association

of Southeast Asian Nations), and African Union, to ensure appropriate implementation. It can be financed through a tiered contribution model, where MEDCs commit a fixed cultural budget share, and private actors like museums or philanthropic institutions can co-finance with tax benefits. Displaying allocations, usage, and regional impact on an online dashboard in public may guarantee transparency.

Simultaneously, it is crucial to make capacity reinforcement as institutionalized, not project-based. Member states can establish regional heritage response academies, which can be modeled after ICCROM's ATHAR Center in the UAE, to train local professionals in heritage documentation, 3D reconstruction, emergency stabilization, and illicit trafficking prevention. These centers can also function as technical hubs during crises, and reduce over-reliance on external experts. A global goal ensuring at least one fully operational cultural emergency unit per conflict-prone region, composed of trained national experts, would promote resilience, autonomy, and an immediate response.

Major parties involved

Republic of Iraq

Iraq has become a prominent case study in the intersection between armed conflict and cultural heritage destruction. The country suffered immense losses during the occupation by ISIS, from 2014 to 2017, when dozens of historic sites, such as the al-Nuri Mosque in Mosul and numerous Assyrian and Islamic artifacts, were deliberately destroyed or looted. In response, Iraq has collaborated with UNESCO and other international organizations to lead large-scale post-conflict recovery efforts. For example, the Revive the Spirit of Mosul initiative, launched in 2018, aiming to reconstruct cultural landmarks, train local youth in restoration techniques, and promote social cohesion through shared heritage. As a result, 124 historical homes were rehabilitated, 404 classrooms were renovated, and more than 7,700 local jobs were created. Iraq is also a signatory to the 1954 Hague Convention, the 1970 UNESCO Convention, and has recently succeeded in repatriating thousands of stolen artifacts from the United States. However, critics highlight that ongoing political instability and fragmented governance structures continue to challenge the sustainability and local ownership of such efforts.

French Republic

France has served as a leading role in cultural heritage protection through both domestic policy and international diplomacy. As a founding member of UNESCO and an advocate of the 1954 Hague Convention and 1970 UNESCO Convention, France regularly supports multilateral frameworks for heritage safeguarding. It co-founded the ALIPH Foundation (International Alliance for the Protection of Heritage in Conflict Areas) in 2017, alongside the UAE (United Arab Emirates), to provide rapid response funding to protect cultural sites in conflict zones such as Iraq, Syria, and Mali. As of 2024, ALIPH has supported over 180 projects in more than 35 countries, with France providing €30 million in initial contributions. Additionally, French cultural institutions like the Louvre and the National Library of France have hosted and conserved endangered manuscripts and artworks from regions affected by conflict. However, debates persist regarding France's colonial-era collections and the pace of restitution to former colonies.

United States of America

The United States has played a central role in international efforts to protect cultural heritage during and after armed conflicts. Its legacy dates back to World War II with the creation of the MFAA (Monuments, Fine Arts, and Archives program), which inspired modern heritage protection frameworks. More recently, the United States government and institutions like the Smithsonian have supported post-conflict recovery through projects such as SHOSI (Safeguarding the Heritage of Syria and Iraq), offering emergency training, documentation tools, and funding to local cultural workers. The AFCP (Ambassadors Fund for Cultural Preservation) has financed over 1,100 projects in 133 countries, including conflict zones like Afghanistan, Iraq, and Libya. The United States is a party to the 1954 Hague Convention and has enacted domestic laws like the Cultural Property Implementation Act (1983) to prevent illicit trafficking. However, past military interventions, like in Iraq, have raised questions about cultural collateral damage, and the country's 2017–2023 withdrawal from UNESCO sparked criticism over its long-term commitment to multilateral cooperation.

Ukraine

Ukraine has emerged as a core example of cultural heritage at its recent risk amid active conflict, the Russia-Ukraine war. Since the full scale invasion in February 2022, UNESCO has verified damages towards 501 sites in Ukraine, including religious buildings, libraries, monuments, and more. Not only the fundings from international organizations, including UNESCO and ALIPH, nearly 30 Member States pledged at a conference in Vilnius to support Ukraine's cultural rehabilitation through UNESCO, backing a long-term plan estimated at \$680 million USD annually until 2033. Furthermore, UNESCO has granted provisional enhanced protection status to critical sites and conducted damage assessments in such locations as L'viv. Nevertheless, with widespread destruction and looting affecting both tangible and intangible heritage, challenges remain in stabilization, documentation, and equitable recovery.

Federal Republic of Germany

Germany is recognized for its leadership in heritage preservation through robust public funding, multilateral cooperation, and technical expertise. It supports UNESCO's emergency heritage actions and hosts the UNESCO World Heritage Centre's advisory body ICOMOS Germany, which plays a major role in post-conflict site assessments. Germany is also a key donor to the ALIPH Foundation and contributed funding to cultural recovery efforts in Iraq and Syria. German archaeologists and engineers have worked closely with local teams in Mosul, Palmyra, and Timbuktu on documentation and site stabilization projects. Moreover, the KulturGutRetter initiative, launched by the German Archaeological Institute (DAI), the Federal Agency for Technical Relief (THW), and the Leibniz Centre for Archaeology (LEIZA), established the Cultural Heritage Response Unit (CHRU), with mobile conservation labs to crisis zones. However, Germany also faces scrutiny over restitution of artifacts acquired during colonial eras and World War II. Reforms are pending in restitution laws, and critics point to delays in returning Nazi-looted art despite policies like the establishment of arbitration mechanisms.

Republic of Korea

Though not traditionally seen as a heritage donor power, South Korea has increasingly asserted itself in cultural diplomacy and heritage cooperation. A signatory to the 1954 Hague Convention, 1970 UNESCO Convention, and the 2003 Convention for the Safeguarding of Intangible Cultural Heritage, Korea has been active in promoting cultural diversity and post-conflict recovery via UNESCO aligned initiatives. It provides significant and steadily growing support to the UNESCO or Republic of Korea Funds-in-Trust, with over \$10 million USD contributed since 2006, used for safeguarding cultural heritage in conflict-affected regions like Afghanistan, Iraq, and Syria. Notably, South Korea supported the digitization of Afghanistan's National Museum archives and co-organized training programs for museum professionals in war-torn countries. Additionally, Korea's expertise in intangible heritage has been shared through capacity building programs in Southeast Asia and the Middle East.

Hellenic Republic

Greece is one of the advocates for the restitution of cultural property, with the Parthenon Sculptures standing at the center of a long international dispute. Greece asserts that these 2,500 year old artifacts were removed by Lord Elgin in the early 19th century during Ottoman rule in which Greece argues lacked legitimate consent and occurred under colonial circumstances. The Greek government maintains that the sculptures should be returned to Athens and displayed in the Acropolis Museum. While the British Museum claims legal ownership under United Kingdom law, it has so far declined UNESCO mediation offers, though some unofficial loan discussions have been reported. Diplomatic momentum has increased in recent years, with global institutions and political leaders questioning the legality and ethics of colonial-era acquisitions, reinvigorating the broader restitution movement.

Timeline Of Events

Date	Description of event
<i>Adoption of the 1954 Hague Convention</i> May 14, 1954	After World War II, UNESCO and world leaders adopted the convention to address the growing issue of looting and trafficking of cultural property, particularly in armed conflict.
<i>Adoption of the 1970 Convention on the Means of Prohibiting and Preventing the Illicit Import, Export and Transfer of Ownership of Cultural Property</i> November 14, 1970	Adopted by UNESCO, it is the first legally binding international treaty to combat illegal import, export, and transfer of cultural property ownership.
<i>Adoption of the 1972 Convention Concerning the Protection of the World Cultural and Natural Heritage</i> November 16, 1972	Established by UNESCO and its member states, the treaty introduced the concept of 'World Heritage' and set out obligations for nations to scrutinize cultural property.
<i>Adoption of the Second Protocol of the 1954 Hague Convention</i> March 26, 1999	It clarifies such terms as 'military necessity' and 'precautionary measures', establishes the concept of Enhanced Protection for heritage sites, and requires member states to criminalize intentional acts of cultural destruction.
<i>Destruction of the Bamiyan Buddhas</i> March 14, 2001	Taliban forces destroyed two monumental Buddha statues in Afghanistan, despite global appeals. This marked a turning point in recognizing cultural destruction as a political act.
<i>Adoption of the Convention for the Safeguarding of Intangible Cultural Heritage</i> October 17, 2003	UNESCO adopted this convention to protect living cultural heritage through inventories, education, and community involvement.
<i>Establishment of the Blue Shield International</i> March 24, 2006	Blue Shield was created as a network to protect cultural property during armed conflict and disasters, implementing parts of the Hague Convention with a civil-military cooperation framework.
<i>Full-scale invasion of Ukraine by Russia</i> February 24, 2022	UNESCO began emergency monitoring of damage to cultural sites in Ukraine, later verifying damage to over 500 cultural properties.

UN Involvement, Resolutions, Treaties and Events

- The 1954 Hague Convention

Adopted by UNESCO in response to the widespread destruction during World War II, the first international treaty dedicated to safeguarding cultural heritage during armed conflict was the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict. It establishes legal obligations for the protection of cultural property, such as monuments, museums, archives, religious and historic buildings, manuscripts, and artworks, and introduces practical measures like the Blue Shield emblem to mark and protect these locations during wartime. State parties are required to prevent damage, theft, and illicit trafficking of cultural heritage and to instill a culture of respect for cultural property within their military forces.

The Convention is further reinforced by two additional Protocols, each with distinct functions. The First Protocol, also adopted in 1954, prohibits the export of cultural property from occupied territories and mandates the return of unlawfully exported items following the end of hostilities. The Second Protocol, adopted in 1999, expands upon the original Convention by clarifying key legal terms such as ‘military necessity’ and ‘precautionary measures’, establishing the concept of Enhanced Protection for heritage sites of exceptional importance, and obligating state parties to criminalize intentional acts of cultural destruction. It also created a dedicated fund to support emergency and preparatory actions, and formed a 12 member intergovernmental committee tasked with monitoring compliance and granting enhanced protection status. These additions were designed to address the enforcement gaps of the original treaty and to offer stronger preventive and accountability mechanisms during armed conflicts.

Despite its legal importance, the 1954 Hague Convention continues to face substantial implementation challenges. Many state parties have yet to incorporate its provisions into their national legislation or military training manuals, and its applicability remains limited in internal conflicts or situations involving non-state actors. Although the Blue Shield emblem is internationally recognized, its presence alone does not guarantee protection on the ground, particularly in regions where training, awareness, or political commitment is lacking. The effectiveness of the Blue Shield symbol relies on its widespread recognition and adherence to international law. To address these issues, Blue Shield

International collaborates with national governments to enhance preparedness and emergency response capacity, though such efforts remain uneven across different conflict zones

A notable example of enforcement came in 2012, when armed groups in Mali deliberately destroyed cultural monuments in Timbuktu, including UNESCO-listed shrines. These acts violated the Hague Convention and its Second Protocol, prompting the ICC (International Criminal Court) to prosecute the case as a war crime. In 2016, the ICC convicted Ahmad al-Faqi al-Mahdi for directing the attacks, marking the first time cultural destruction alone was prosecuted as an international crime, reinforcing the Convention's growing legal authority.

- The 1970 UNESCO Convention on the Means of Prohibiting and Preventing the Illicit Import, Export and Transfer of Ownership of Cultural Property

Prompted by the increasing loss of cultural property through illicit trafficking, especially during armed conflicts and colonial occupation, UNESCO adopted the 1970 Convention as the first legally binding international treaty to combat the illegal import, export, and transfer of cultural property ownership. The Convention compels State Parties to take legislative and administrative steps to prevent the unauthorized movement of cultural artifacts across borders, including creating national inventories, regulating antiquities trade, and criminalizing illicit trafficking. It also allows for the restitution of cultural objects to their rightful owners, particularly when these were removed from occupied or unstable regions during conflict.

A core strength of the Convention lies in its emphasis on international cooperation. Countries are required to assist one another in identifying, locating, and repatriating stolen or illegally exported cultural property. The Convention further encourages bilateral and multilateral agreements for protection and return procedures. Over time, it has become a main legal foundation for modern restitution efforts, especially in cases where cultural property has been smuggled during war and unrest. For instance, it was notably invoked in the recovery of artifacts looted from Iraq and Syria during the ISIS occupation and has helped to underpin claims for the return of objects removed during colonial or wartime exploitation.

- The 1972 UNESCO Convention Concerning the Protection of the World Cultural and Natural Heritage

In recognition of the need to safeguard cultural and natural treasures of outstanding value to humanity, UNESCO and its Member States established the 1972 Convention as a comprehensive framework for international heritage protection. This treaty introduced the concept of ‘World Heritage’ and set out obligations for state parties to identify, protect, and conserve cultural monuments, architectural ensembles, and sites of exceptional universal significance, alongside natural landscapes of ecological importance.

A unique feature of the Convention is the World Heritage List, which elevates recognized properties to a global level of visibility and protection. Inscription brings not only prestige but also access to international technical assistance and, in some cases, emergency funding through the World Heritage Fund. While the treaty was not originally designed with armed conflict in mind, it has increasingly been invoked during times of war, especially when destruction targets inscribed sites. In places like Syria, Iraq, and Mali, UNESCO has deployed damage assessment missions, satellite monitoring, and emergency documentation to mitigate the loss of heritage under threat.

Nonetheless, the Convention’s influence in conflict zones remains limited since it is not punitive. Unlike the 1954 Hague Convention, it lacks enforcement mechanisms to deter intentional destruction or prosecute perpetrators. In certain instances, World Heritage status has unintentionally made sites more vulnerable by turning them into high-profile targets. Additionally, the surge in tourism following inscription can bring both economic opportunities and harmful pressures, especially in areas without sufficient infrastructure or local benefit-sharing mechanisms.

To enhance protection, UNESCO works closely with advisory bodies like ICOMOS (International Council on Monuments and Sites) and ICCROM (International Centre for the Study of the Preservation and Restoration of Cultural Property). These institutions support states with conservation planning, post-conflict recovery strategies, and risk preparedness tools. The World Heritage Committee also maintains the List of World Heritage in Danger, drawing global attention to sites threatened by armed conflict, natural disasters, or neglect. An example for this is Libya, where

five cultural sites were added to the Danger List in 2016 due to the risks posed by civil unrest and looting, prompting international coordination and technical support efforts.

- The 2003 UNESCO Convention for the Safeguarding of the Intangible Cultural Heritage

The 2003 Convention for the Safeguarding of the Intangible Cultural Heritage marked a major shift in international heritage protection by recognizing the importance of living cultural expressions, such as oral traditions, performing arts, rituals, traditional craftsmanship, and festive events, as essential to community identity and continuity. The Convention defines intangible cultural heritage as practices, representations, expressions, knowledge, and skills transmitted across generations, and obliges State Parties to take necessary legal, administrative, and educational measures to ensure their safeguarding. It stresses community participation and requires States to identify and inventory their intangible cultural heritage in cooperation with bearers of the traditions, encouraging a bottom-up, culturally sensitive approach to heritage governance.

In addition to establishing national safeguarding responsibilities, the Convention created three key international mechanisms: the Representative List of the Intangible Cultural Heritage of Humanity, the List of Intangible Heritage in Need of Urgent Safeguarding, and the Register of Good Safeguarding Practices. These instruments aim to enhance visibility, support preservation efforts, and promote knowledge exchange across countries. Moreover, a dedicated fund provides financial assistance for safeguarding initiatives, and the Intergovernmental Committee for the Safeguarding of the Intangible Cultural Heritage, composed of 24 rotating members, is tasked with overseeing the implementation and evaluating state reports.

However, in spite of its progressive aims, the 2003 Convention also faces growing concerns regarding the unintended consequences of inscription. According to UNESCO report, tourism and commercialization linked to intangible heritage listings can cause cultural practices to become decontextualized, rigidified, or exploited. For instance, traditions may be altered or simplified for the public, leading diverse and evolving cultural expressions to become standardized and fixed. This process, often called ‘heritage freezing’, can limit the community’s ability to adapt or continue their practices in a natural, creative way. Moreover, economic benefits from increased visibility often flow to outside actors such as national governments, researchers, or tour operators, rather than to the

communities themselves. In extreme cases, these dynamics have led to over-commercialization, unequal benefit-sharing, and even environmental degradation due to unsustainable tourism.

- UN General Assembly Resolution: Saving the Cultural Heritage of Iraq, 28th May 2015 (281)

In response to the deliberate and systematic destruction of cultural heritage by terrorist groups such as ISIS, UN General Assembly Resolution 281 underscores the urgent need to protect cultural property during armed conflict. It condemns the destruction, looting, and smuggling of cultural artifacts as a threat to international peace and security and affirms that such acts may constitute war crimes under international law. The Resolution explicitly references the 1954 Hague Convention and the 1970 UNESCO Convention, calling for their full implementation by all member states. The Resolution further emphasizes the role of international cooperation, urging UN bodies, INTERPOL, UNESCO, and other stakeholders to strengthen operational coordination and technical assistance. It encourages member states to support emergency preservation programs and post-conflict recovery initiatives, including the documentation, digitization, and repatriation of stolen cultural property.

- UN Security Council Resolution 2347, 24th March 2017 (2347)

For the first time in its history, the United Nations Security Council unanimously acknowledged that the destruction of cultural heritage during armed conflict can pose a threat to international peace and security. Adopted in March 2017, Resolution 2347 was a landmark moment that elevated cultural heritage protection from a cultural issue to a security priority within the UN framework.

This resolution was significantly shaped by the widespread cultural devastation caused by ISIS in Syria and Iraq, including the destruction of ancient sites in Palmyra and the looting of museums in Mosul. It recognizes that attacks on heritage are often used as a tactic of war, aiming to erase collective identities, fuel extremism, and destabilize societies.

Resolution 2347 calls on all Member States to take appropriate measures to prevent the trafficking of cultural property, strengthen national legal frameworks, and integrate cultural protection

into military operations. It also encourages the development of specialized cultural protection units within peacekeeping missions and supports cooperation with UNESCO, INTERPOL, and other relevant organizations.

In practice, this resolution has paved the way for increased international collaboration, such as the ALIPH Foundation (International Alliance for the Protection of Heritage in Conflict Areas), which funds heritage safeguarding in crisis zones, and INTERPOL's red notices for looted artifacts. Moreover, it marked the first time cultural protection was explicitly integrated into peacebuilding and counterterrorism discourse. While the resolution is not legally binding, its political weight has led to greater awareness and coordination across the UN system. However, implementation remains uneven. Many countries still lack the institutional capacity, legal tools, or political will to fully operationalize the resolution's recommendations, particularly in fragile or conflict-affected settings.

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